



POLICE DEPARTMENT

July 14, 2014

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Ronald Wilson
Tax Registry No. 892709
Bus Unit
Disciplinary Case Nos. 2011-5621, 2012-6640 & 2012-8191

The above-named member of the Department appeared before me on June 20, 2014, charged with the following:

Disciplinary Case No. 2011-5621

1. Said Police Officer Ronald Wilson, while assigned to the Citywide Traffic Task Force, on or about May 9, 2011, while on duty, having been notified to appear at Manhattan South Traffic Violations Bureau to provide testimony on summons cases, failed to appear in court, resulting in the dismissal of twelve (12) cases.

P.G. 211-01, Page 3, Additional Data DUTIES IN COURT
P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

2. Said Police Officer Ronald Wilson, while on-duty and assigned as indicated in Specification # 1, on or about April 9, 2010, April 15, 2010, July 26, 2010, October 13, 2010, January 17, 2011, January 19, 2011, January 31, 2011, and February 23, 2011, failed to make complete entries and/ or omitted entries related to the above-referenced summonses in his Department issued memo book.

P.G. 212-08, Page 1, Paragraph 1 ACTIVITY LOGS
P.G. 209-09, Page 3, Paragraph 19 PERSONAL SERVICE OF SUMMONSES
RETURNABLE TO TRAFFIC
VIOLATIONS BUREAU OR CRIMINAL
COURT

Disciplinary Case No. 2012-6640

1. Said Police Officer Ronald Wilson, assigned to the Bus Unit, on or about and between January 15, 2010 through July 12, 2010, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit said Police Officer on multiple occasions requested the assistance of other members of the service to prevent the adjudication and processing of multiple summonses issued to various motorists.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
GENERAL REGULATIONS

Disciplinary Case No. 2012-8191

1. Said Police Officer Ronald Wilson, assigned to the Bus Unit, on or about November 1, 2011, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer scheduled to appear at the Queens Taxi and Limousine Commission at 0830 hours to provide testimony on summonses said Police Officer issued, did not appear until 0949 hours resulting in the dismissal of two (2) summons cases for one (1) motorist.

P.G. 203-10, Page 1, Paragraph 5 PROHIBITED CONDUCT
GENERAL REGULATIONS

The Department was represented by Michelle Alleyne, Esq., Department Advocate's Office, and Respondent was represented by Michael Martinez, Esq.

Respondent through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

Disciplinary Case No. 2011-5621

Respondent, having pled Guilty, is found Guilty as charged.

Disciplinary Case No. 2012-6640

Respondent, having pled Guilty, is found Guilty as charged.

Disciplinary Case No. 2012-8191

Respondent, having pled Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent, a 27-year member of the Department, has been assigned to the Bus Unit for eight years. During the course of his career he has effected approximately 400 arrests. He has never before been the subject of formal Department discipline and has always been on full duty status.

Respondent writes between 130 and 150 summonses a month, and he goes to traffic court two or sometimes three times a week. Each time he goes to traffic court in Manhattan he testifies for on average 20 cases. He has a filing system for all the summonses he has written in his locker.

Respondent testified that when he joined the Department it was common practice at all levels for officers to engage in "ticket fixing." It was at his official Department interview that he was first informed that the practice was no longer allowed. He was confronted at the interview with evidence that he had been involved in at least four instances of ticket fixing. He has not engaged in ticket fixing since that day. He was not arrested as a result of the ticket-fixing investigation. About the four tickets that he was confronted with, Respondent explained that he did not fix them on behalf of anyone he

personally knew. He further explained his role: "I was the head [union] delegate and I had everybody's number, so everybody knew me so I was the contact person."

Respondent has been a delegate for 21 years. On May 9, 2011, he was scheduled to go to traffic court but failed to appear. He explained that he put in a Leave of Absence Report (UF-28) for that day so that he could go to a union meeting. He never received notification that the UF-28 was denied. He further explained that Tuesday was not a regular court day for him, the Mayor's Executive Order No. 75 allows delegates to be absent from work for union meetings, and he had never before been told that he could not go to a union meeting because of court. His roll call supervisor was disciplined for allowing him to go to the union meeting that day.

Respondent testified that given the great amount of summonses he wrote, he did not enter each summons in his Activity log. All of the information he needed to testify in court he wrote on the backs of the summonses.

Respondent was scheduled to be at Queens Taxi and Limousine Commission (TLC) court at 8:30 a.m. November 1, 2011. Unlike other courts, officers set their TLC court appearance dates themselves. The date can be up to 60 days after a summons was issued, and the officer is responsible for reminding himself of the appearance date. On November 1, Respondent was scheduled to testify for two summons cases. He started his regular patrol that day, and when somebody from TLC court called to ask where he was he immediately jumped in his car. By the time he arrived at court at 9:40 or 9:45 a.m., his cases had been dismissed. According to Respondent, when motorists who receive summonses fail to appear at TLC court, the cases are not dismissed. Instead, adjournments are granted.

Respondent testified that vacation days are particularly important to him because his two children go to college in Virginia, and he takes off from work every August to spend time with them.

When asked about his conviction rate at traffic court, Respondent replied, "85 percent. It would be probably higher but I usually write multiple summonses, so a lot of times the judges will only take one or two out of the three summonses and find them guilty."

On cross-examination, Respondent agreed that while ticket fixing was a common practice, it was also contrary to Department procedure.

He typically got notice of a union meeting a week in advance. He did not make any attempt during that week in May 2011 to reschedule his traffic court date. He explained that he did not have the authority to make such a request. He did not think that the union meeting conflicted with the court date since it was his understanding at the time that the meeting superseded court.

He conceded that he was late to TLC court on November 1 because he forgot the appearance date that he had set for himself.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on April 28, 1987. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Because Respondent has pled guilty the only issue to be determined is to find an appropriate penalty. The Advocate has recommended a penalty of 35 vacation days, five suspension days and one year of dismissal probation.

Disciplinary Case No. 2012-6640 involves a charge that Respondent "requested the assistance of other members of the service to prevent the adjudication and processing of multiple summonses issued to various motorists." Respondent has admitted to doing this on four occasions. This specification arose out of a long term investigation which resulted in a large number of disciplinary cases often referred to as "the Bronx summons cases." Most of those disciplinary cases have been adjudicated. It is agreed by both sides that based upon those adjudications the appropriate penalty for Respondent on that case would be the loss of 25 vacation days, 5 suspension days and one year dismissal probation.

The Advocate argued that the ten additional days that is being requested in this case is a modest penalty for the remaining two disciplinary cases. Respondent argued that the penalty he would agree to is substantial and that the additional ten days are not warranted under all the circumstances.

Appropriately resolving this dispute about ten vacation days is what this case is about.

In attempting to do that this report will review two basic areas that are part of any penalty recommendation: 1) Respondent's work history, 2) the nature and significance of the offenses.

Respondent has been a member of the service for over 27 years. For most of that time he has been a union delegate. Other than the instant cases Respondent has no prior disciplinary history.

The three remaining cases all have something to do with the adjudication of summonses and the investigation into these cases seems to have stemmed from the Bronx Summons Case investigation.

For instance Disciplinary Case No. 2011-5621 appears to stem from a change in practice as to how the appearances of officers at traffic court are monitored. Both the method of investigation of this type of case and level of penalty imposed has fluctuated substantially from the time of the Bronx Summons Case investigation to the present. It is my understanding that this type of offense would at this time be handled at the command level where among other things Respondent's supervisors could take into account Respondent's level of summons activity. It seems unlikely that under present circumstances Respondent would receive a penalty anywhere near ten days if the matter were brought to the Department's attention at this time.

Disciplinary Case No. 2012-8191 appears an instance in which Respondent appeared approximately an hour and twenty minutes late for an adjudication at the Taxi and Limousine Commission. He is charged with causing the dismissal of two summonses involving one motorist as a result of this lateness. On its face anything approaching the loss of ten vacation days for this offense seems unduly harsh.

Moreover I have addressed the imbalance in this type of administrative hearing previously. In most forums it would be unheard of for a case to be dismissed because a witness was a little over an hour late for court. It is beyond cavil that no motorist would

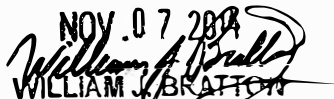
suffer a default judgement for having shown an hour or so late for court and if a default had been issued it would be set aside.

In circumstances like this an officer faces punishment for what happens in a forum where he or she has no representation and no standing. This is both unfair and unwarranted. Respondent has acknowledged that he was late for court and that as a result the hearing officer dismissed two summonses he issued to one motorist. While the plea is acceptable no penalty should be imposed on the police officer for what the hearing officer did.

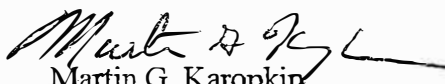
In the end and considering all of the factors I believe that the very substantial penalty for Disciplinary Case No. 2012-6640 is sufficient to cover all of the transgressions before the Court.

Accordingly, it is recommended that Respondent forfeit 25 vacation days, five suspension days, and that Respondent be DISMISSED from the New York City Police Department but that his dismissal be held in abeyance for a period of one year pursuant to Section 14-115 (d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings.

APPROVED

NOV 07 2014

WILLIAM J. BRATTON
POLICE COMMISSIONER

Respectfully submitted,


Martin G. Karopkin
Deputy Commissioner - Trials

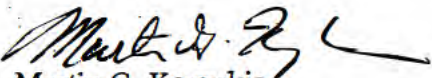
POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER RONALD WILSON
TAX REGISTRY NO. 892709
DISCIPLINARY CASE NOS. 2011-5621, 2012-6640 & 2012-8191

Respondent received an overall rating of 4.5 "Extremely Competent/Highly Competent" on his last three annual performance evaluations. He has been awarded one medal for Excellent Police Duty. [REDACTED]

[REDACTED] He has no prior formal disciplinary record.

For your consideration.


Martin G. Karopkin
Deputy Commissioner Trials